

to having an independent attorney-client relationship with that party's counsel. Hence, the existence of the work product doctrine creating a privilege for such writings and communications that may be had with the expert. Here, Cross-complainants even assert Birnberg informed Atchley he considered their communications work product. See, Cross-Complaint, pg. 5, ll. 15-18.

Perhaps, the most compelling argument of Cross-complainants is contained in Exhibit 5 to the Cross-complaint – an “opinion letter re license contractor” with “attorney-client privilege” at the top referenced above also referenced in the Declaration of Joel Selik. Although this letter is addressed to Atchley and WSI, it clearly indicates the opinion is being provided based on concerns related to protecting House and House's litigation. There are references to concerns about House not being on WSI's workers compensation policy, House being protected from a lawsuit if a worker is injured and sues, that the “permit wants Jim [House] to comply”, that “I interpret this that Jim must contract with someone who is a licensed California Contractor”, etc. In addition, this correspondence goes on to include reference to what “WSI-Greg and Danny claim” in relation to their positions, how they are charging and whether contracts are consistently labeled. The “bottom line” of this correspondence is to indicate House will need a California contractor and cannot claim WSI and its employees are employees of House. This correspondence much like the other “attorney-client privilege” communications between the parties makes clear Birnberg is, at all times, acting to protect House and does not want the communications discoverable in order to protect his client, House.

Based on the foregoing and there being no likelihood Cross-complainants would prevail in their claims even if opportunity to amend were granted, Birnberg's Motion to Strike (Anti-SLAPP) is granted with no leave to amend.

Attorney Fees and Costs

Code of Civil Procedure section 425.16 (c) (1) provides, in relevant part: “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs.” “[The] decisional authority and the plain language of section 425.16, subdivision (c) supports the conclusion that the commonly understood definition of attorney fees ... applies with equal force to section 425.16 and a prevailing defendant is entitled to recover attorney fees *if represented by counsel.*” *Witte v. Kaufman* (2006) 141 Cal.App.4th 1201, 1208 (italics added), quoting *Ramona Unified School Dist. v. Tsiknas* (2005) 135 Cal.App.4th 510, 524.

At bar, Cross-Defendant has incurred no attorney fees in bringing the motion to strike, because all the work was done by Cross-Defendant on his own behalf. Thus, Cross-Defendant is not entitled to attorney fees. *Witte, supra*, at 1211.

6. CU0001527 Julie Swan et al vs. James Valentine

On the Court's own motion, Attorney Jeff Workman's motions to be relieved as counsel is denied without prejudice for the reasons set forth below. In addition, the Court notes a notice of unconditional settlement was recently filed on April 15, 2026 indicating this motion may now be moot. However, as the Court has not received a notice of withdrawal of motion, the Court is compelled to rule on counsel's request.

Legal Standard

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Cal. Rules of Court, rule 3.1362(a), (c), (e). The requisite forms must be served “on the client and on all parties that have appeared in the case.” Cal. Rules of Court, Rule 3.1362(d).

Analysis and Conclusion

Attorney Workman represents Plaintiffs Julie Swan and Allan Sword. Workman moves to be relieved as counsel, citing irreconcilable differences between Counsel and Plaintiffs. No opposition has been filed.

Workman has filed Judicial Council Forms MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). Workman seeks to be relieved as counsel for Plaintiffs on the grounds that there has been a breakdown in the attorney-client relationship. The Court finds this to be proper grounds for withdrawal. See *Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (a breakdown in the attorney-client relationship is grounds for allowing the attorney to withdraw).

The Court notes within the past 30 days, Plaintiff's address was confirmed to be current by counsel through: (1) mail, return receipt requested; (2) Plaintiffs have provided the address in discovery responses as a current address in another matter Counsel's firm represents Plaintiffs; and (3) Plaintiff has been served electronically. The trial date is set for November 18, 2026, and the next Court appearance is the Mandatory Settlement Conference set for August 17, 2026, which should be sufficient time for Plaintiffs to retain new counsel.

However, counsel has not served all parties in this action, namely Defendants, as required by California Rules of Court, Rule 3.1362(d). Accordingly, the motion is denied without prejudice. Moving party shall give notice and provide a proof of service of such.

7. CU0001584 Matthew Coulter vs. Mark Olsen et al

Plaintiff Matthew Coulter's unopposed motion for leave to file a third amended complaint is granted. Plaintiff is to file his Third Amended Complaint within ten (10) days of the hearing date on the motion, April 27, 2026.

Legal Standard

The Court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any